JANE CHIPITI
versus
TATENDA DEMBAREMBA(In his capacity as the executor dative of the estate of the late Johannes Dembaremba DR 1548/22)
and
CHENAI TEPALEPA
and
THE MASTER OF HIGH COURT
and
THE REGISTRAR OF DEEDS N.O

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE 18 March 2025, & 16 April 2025.

Civil Trial – Absolution from the Instance

L Rufu, for the Plaintiff
S P Mamimine, for the Defendant
No Appearance for the 3rd and 4th Defendants

MAXWELL J:

This is an application for absolution from the instance. The application is made in terms of Rule 56 (6) of the High Cout Rules, 2021. The main action is a claim by the plaintiff for confirmation of revocation of a donation of a certain property commonly known as, Number 3762 Dzivarasekwa 4, Harare held under Deed of Transfer 04697/95 made to her late son (the late Johannes Dembaremba). The plaintiff's cause of action is founded on the alleged ingratitude of the first and second defendants, which include failure to look after the plaintiff, destroying the plaintiff's property which was at the immovable property, denying the plaintiff access to the immovable property and accusations of witchcraft. The court is not, at this stage making a final determination on whether the first and second defendants' conduct indeed amounted to ingratitude warranting the revocation of the donation. The sole issue for determination is whether the plaintiff has adduced sufficient evidence upon which a reasonable court applying its mind ,could find in her favour.

The plaintiff led evidence from three witnesses. The plaintiff testified that, she was blessed with one child, Johannes Dembaremba who is now late. The late Johannes Dembaremba's father died many years ago around 1978, when the late Johannes

Dembaremba was in grade two. She mentioned that, the first defendant is her eldest grandson and is the executor dative of the estate of the late Johannes Dembaremba and the second defendant is her daughter in law and also the surviving spouse of the late Johannes Dembaremba. The plaintiff mentioned that, she raised the late Johannes Dembaremba as a single mother whilst working as a maid for a white man, Mr Baines in Belvedere, Harare. She managed to acquire the property in question namely Number 3762 Dzivarasekwa 4, Harare. It was her evidence that, in 1984, she entered into an agreement of sale with the Municipality of Harare now the City of Harare for the sale of Stand Number 3762, Dzivarasekwa. A copy of the Agreement of sale between Casmale Nyabvure and the Municipality of Harare was tendered in court as Exhibit. She further avers that, sometime in 1994, she donated Number 3762 Dzivarasekwa, Harare to her late son Johannes Dembaremba. She further asserted that the second defendant used to work as a maid in Belvedere, Harare where the plaintiff was working, and that is how she met the plaintiff's late son.

The plaintiff also led evidence to the effect that, at the time when Casmale Nyabvure assigned right, title and interest in Stand 3762 Dzivarasekwa in 1989 to her, the property had three rooms and a slab developed on it. She stated that she donated Stand 3762 Dzivarasekwa to her son who was now in the employment of Harare Municipality to enable the late Johannes Dembaremba to procure a loan such that he could develop the house to completion on behalf of the plaintiff. She further pointed out that the donation was also made on the understanding that even if the property was to be registered into the names of the late Johannes Dembaremba, the plaintiff would still have undisturbed rights over her house until she dies. The plaintiff produced as evidence a copy of the Memorandum of Agreement of Assignment that she entered into with her late son after she donated the said immovable property to him. In the said agreement it was clearly recorded that it was a donation to her son.

The plaintiff avers that, pursuant to the said donation, transfer of Stand 3762, Dzivarasekwa Township was effected into the name of the late Johannes Dembaremba around September 1995 under Deed of transfer number 04697/95. A copy of a Deed of Transfer was produced in court as evidence. The plaintiff averred that, sometime in the late 1990s, after Johannes Dembaremba had already taken transfer of the immovable property, she once chased Johannes Dembaremba and his family from the property in question. It was the plaintiff's evidence that, her late son and his family came back to the property after two years, after the plaintiff had allowed them to come back since the late Johannes Dembaremba

had lost his job. She further alleged that, despite all this, the second defendant has shown ingratitude to her by failing to look after her, destroying her property which was at the property in question, denying her access to the property and calling false prophets to the property in question who would accuse the plaintiff of witchcraft and accuse her of many despicable things. The plaintiff contended that these actions of gross ingratitude by the late Johannes Dembaremba and his wife made her to revoke the donation of Stand 3762, Dzivarasekwa 4, Harare. The plaintiff also led evidence to the effect that in 2021 she revoked the donation she made to her late son and her late son apologized and agreed to reverse everything once he recovered. She stated that her claim before the court is for confirmation of the revocation of the donation.

Constance Zvokunzwa gave evidence for the Plaintiff. She stated that Jane Chipiti used to work for Mr Baines. She mentioned that when her boss was about to relocate, he bought a stand for her in Dzivarasekwa. She was advised by the plaintiff that it was a three roomed house with a slab to become seven rooms. She pointed out that the plaintiff was staying at the servant's quarter and Johannes went to stay at the house in question. She stated that she was later on advised by her husband that the second defendant was not giving any support to the plaintiff. Every time the plaintiff would go and visit the property in question, they will be problems with her son and daughter-in-law (second defendant). She gave evidence to the effect that her husband suggested that the late Johannes should build a house for her mother since he qualified to get a bond at his workplace.

However, it was not possible for the late Johannes to get a bond without a title deed in his name. As a result the plaintiff donated the property to the late Johannes Dembaremba. She stated that, she witnessed ingratitude by the late Johannes and his wife, the second defendant. At one time the late Johannes and his wife were chased away from the property in question when they were having disputes with the plaintiff. Her husband advised her that Johannes was not taking care of his mother and the plaintiff was advised not to allow them to come back to the property in question. She further averred that the second defendant was aware that the plaintiff worked as a maid before she got married to the late Johannes.

Augustine Muvishi also gave evidence for the plaintiff. He submitted that, he was told by his aunt that the plaintiff had bought the property. He mentioned that, he was not there when the alleged sale agreement was entered and he did not witness anything.

Joshua Zengenene also gave evidence for the plaintiff. He mentioned that, he was told by the plaintiff that she had bought a property. He stated that, the plaintiff and her son had a

good relationship and that she never told him about any ill treatment. He did not comment on the issue of ill treatment of the plaintiff. He further stated that he had not seen the agreement of sale purportedly entered between the plaintiff and her deceased son. He pointed out that he only came to know about the dispute when he came to court to testify after the plaintiff divulged to him of the dispute.

At the close of the plaintiff's case, the first and second defendants applied for absolution from the instance in terms of rule 56 (6) of the High Court Rules, 2021. The first and second defendants averred that the plaintiff has failed to establish a prima facie case at the close of her case. In their application they stated that the plaintiff has a long-standing acrimonious relationship with her daughter in law. The first and second defendants averred that, the document relied upon by the plaintiff is just a memorandum of assignment of lease rights wherein she was given rights to possess and occupy the property for 30 years. The first and second defendants further mentioned that the rent cards which were presented before the court as evidence were merely used for the payment of rates and sewer and collection of bin services by the Municipality. The first and second defendants asserted that, the plaintiff should pay costs of suit on a legal practitioner and client scale since they have been put out of pocket in defending this matter.

The test for determining applications for absolution from the instance was well explained in the case of *United Air Charter* v *Jarman* 1994 (2) ZLR 341 (S) 343 B-C where the court stated the following:

> "The test in deciding an application for absolution from the instance is well settled in this jurisdiction. A plaintiff will successfully withstand such an application if, at the close of his case, there is evidence upon which a court directing its mind reasonably to such evidence, could or might (not should or ought to) find for him. See *Supreme Service* Station *(1969) (Pvt) Ltd* v *Fox Goodridge (Pty) Ltd* 1971 (1) RLR 1 (A) at 5D – E, *Laurenoov Raja Dry Cleaners & Steam Laundry (Pvt) Ltd* 1984 (2) ZLR 151 (5) @158 B – E"

See also the case of *Walker* v *Industrial Equity Ltd* 1995 (1) ZLR 87 (S) at 94F-G.

In the case of *Brian Takura Moyo & Anor* v *Methodist Church (Greendale)* HH181/2018 Dube JP cited the case of *Supreme Service Station* (*supra)* wherein the court pointed out that the test for absolution from the instance boils down to whether there is sufficient evidence on which a court might make a reasonable mistake and give judgment for the plaintiff. The court stated that what a reasonable mistake is, is a question of fact

The legal principles governing an application for absolution from the instance are well settled in our jurisprudence. In the case of *Gascoyne* v *Paul & Hunter* 1917TPD, at p. 173 the court said the following:

> "At the close of the plaintiff's case, therefore, the question which arises for the consideration of the court is, is there evidence upon which a reasonable man might find for the plaintiff? And if the defendant does not call evidence, but closes his case immediately, the question for the court would be, is there such evidence upon which the court ought to give judgment in favour of the plaintiff"

In the South African case of *Mazibuko* v *Santam Insurance Co Ltd & Anor* 1982 (3) SA 125 (AD) at 133, the court said, at 132H:

> "In an application for absolution made by the defendant at the close of the plaintiff's case the question to which the Court must address itself is whether the plaintiff has adduced evidence upon which a court, applying its mind reasonably, could or might find for the plaintiff; in other words whether plaintiff has made out a prima facie case".

Counsel for the first and second defendants argues that the plaintiff has failed to adduce sufficient evidence upon which the court can find for the plaintiff. Counsel for the plaintiff opposed the application contending that a *prima facie* case has been established. It was the plaintiff's evidence that sometime in 1990, the late Johannes Dembaremba and his family were chased away from the property by the plaintiff. If indeed it was his immovable property, which he had bought from the City of Harare as alleged by the first and second defendants, the late Johannes Dembaremba and his family would not have moved away from their house. The plaintiff also led evidence to the effect that in 2021, she revoked the donation she made to her late son and the late Johannes Dembaremba apologized and agreed to reverse everything once he recovered. The above evidence clearly shows that the plaintiff has established a *prima facie* case.

According to the plaintiff, the only reason why the transfer was to be effected into the late Johannes Dembaremba's name was that he wanted to procure a loan which he was to use to develop and complete Stand 3762, Dzivararsekwa. The loan was not to be used to purchase the immovable property in question from the City of Harare. Clearly, the property had already been legally sold to the previous holders of title.

I am of the view that the plaintiff's evidence is sufficient to *prima facie* establish a valid claim for revocation of a donation. It is clear from the evidence presented that the plaintiff indeed made a donation to her late son Johannes Dembaremba. The evidence by the plaintiff was the best evidence required. The above test enjoins the court to consider whether on the evidence led on behalf of the plaintiff, the court could or might find for the plaintiff. It

is important to note that at this stage the court is not so much concerned about the credibility of the witnesses and the probabilities of the case. It is in the interest of justice for the matter to proceed to the defense case in order for the court to make an informed decision. The evidence led for the plaintiff was clear and has laid a basis for putting the defendants to their defense.

The first and second defendants went to town, addressing the court on previous litigations which do not help their case in any way. The first and second defendants prayed for costs *debonis propiis*, alleging that they were put out of pocket. It is trite that, the award of costs is in the discretion of the court, to be exercised judicially upon a consideration of all the facts. The legal standard for punitive costs is where conduct has been unreasonable, vexatious or abusive of court process. Costs *de bonis propiis* are awarded in reasonably serious cases and are not awarded lightly against legal practitioners. In the case of *Agribank* v *Mutero & Another* HH807/16 the court stated that;

> "An award of costs *de bonis propiis* is an order which courts do not make against legal practitioners lightly. They are awarded in cases where a legal practitioner has exhibited really improper conduct"

There is no justification at all for the first and second defendants to seek an order of costs on an attorney and client scale against the plaintiff or her legal practitioner. The plaintiff's legal practitioner never handled the case with negligence, hence an award of costs *debonis propiis* would result in a great miscarriage of justice. In any event, costs follow the cause therefore, it is the first and second Defendants who are to pay the Plaintiff's costs.

I am of the view that the plaintiff has managed to establish a *prima facie* case.

Accordingly, it is ordered as follows

1. The application for absolution from the instance be and is hereby dismissed
2. The first and second defendants are put to their defense when the matter resumes on a date to be advised by the Registrar.
3. The first and second defendants are to pay the plaintiff's costs on a Legal Practitioner and Client scale.

Rufu Makoni Legal Practitioners, plaintiff's legal Practitioners
Sande Legal Practice, first and second defendant's Legal Practitioners